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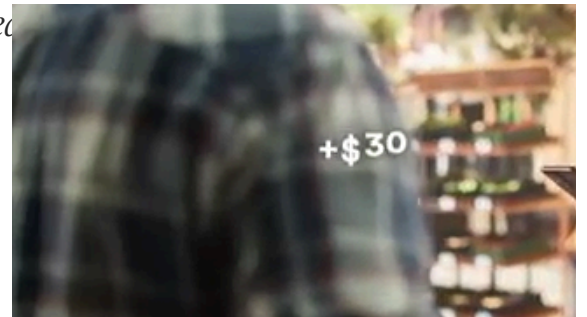
Kim Davis points to Thomas' opinions and Barrett's book in bid to reverse Obergefell

The former Kentucky county clerk's long-shot and likely doomed effort to overturn Obergefell v. Hodges at the Supreme Court.



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By **Jordan Rubin**



Kim Davis is pressing the Supreme Court to overturn its 2015 decision recognizing same-sex marriage rights. In support of her long-shot, likely doomed effort, the

former Kentucky county clerk – who famously refused to issue a marriage license to a gay couple in 2015 after Obergefell was decided – leans heavily on the words of Justice [Clarence Thomas](#).

Davis cited Thomas several times in her final [reply brief](#) to the justices Wednesday, the last court filing before they consider whether to grant review of her [petition](#). It takes four justices to grant review.

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Thomas' appearance is unsurprising because he has questioned same-sex marriage rights, including in a previous round of litigation in Davis' case.

Among the words of his that she cites is a [statement he issued](#) in 2020, joined by Justice [Samuel Alito](#), in connection with the court's denial of a prior petition in her case. "By choosing to privilege a novel constitutional right over the religious liberty interests explicitly protected in the First Amendment, and by doing so undemocratically, the Court has created a problem that only it can fix," Thomas wrote of Obergefell.

More unusual is Davis' reference to Justice [Amy Coney Barrett](#)'s new book, which the Trump appointee [has been promoting](#). Davis quoted Barrett as writing, "The Court's presumption; the Court can and does fix mistakes." ([Stare decisis](#) adherence to precedent.)

Barrett wasn't on the high court in 2015 when Obergefell was decided. Kennedy (since replaced by Justice Brett Kavanaugh) wrote the majority opinion. Justices Ruth Bader Ginsburg (replaced by Barrett), Stephen I

Brown Jackson), Sonia Sotomayor and Elena Kagan. Dissenting were Thomas, Alito, Chief Justice John Roberts and Justice Antonin Scalia (replaced by Justice Neil Gorsuch).

Davis' petition seeks to upend a [ruling](#) from the U.S. Court of Appeals for the 6th Circuit, which affirmed her loss in a civil case brought by David Moore and David Ermold, the couple whose license she refused. Opposing Supreme Court review, Moore and Ermold [write that](#) Obergefell "was correctly decided, and there is no need to revisit it."

Now that the briefing is complete with Davis' reply filed, the justices will consider her petition at their private conference on Nov. 7. We may learn the court's decision soon after the conference, although the justices aren't on a deadline to rule.

While anything could happen, it doesn't seem that a majority of the court is interested in overturning that precedent. It might be more a question of whether there are any dissents or separate statements issued in connection with the denial of this latest petition, and if so, how many justices on the current court sign on.

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